

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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FREDDIE FRANCIS AND JAMAR FRANCIS,

Plaintiff,

-against-

JOSEPH SOLOMITO; and JOHN and JANE DOE 1-10, individually and in their official capacities (the names John Doe being fictitious, as the true names are presently unknown),

Defendants.
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**COMPLAINT AND
JURY DEMAND**

Docket No.
15-cv-4962

ECF CASE

Plaintiffs Freddie Francis and Jamar Francis, by their attorney Joseph Indusi, Esq. of London Indusi LLP, for their complaint against Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiffs seek relief through 42 U.S.C. §1983 and 42 U.S. §1988 for the violation of their civil rights protected by the Fourth and Fourteenth Amendments of the United States Constitution.

2. The claim arises from a May 8, 2015 incident in which Defendants, acting under color of state law, unlawfully stopped and arrested Mr. Freddie Francis and Mr. James Francis without probable cause. Plaintiffs spent approximately 5 hours each unlawfully in police custody. After going to Court a number of times, Plaintiffs cases were dismissed and sealed on or about August 24, 2015.

3. Plaintiff seeks monetary damages (special, compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331 and 1343(a) (3) and (4).

VENUE

6. Venue is laid within the Eastern District of New York in that a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District. 28 U.S.C. § 1391 (b).

PARTIES

7. Plaintiff Freddie Francis resided at all times here relevant in Brooklyn, King's County, City and State of New York.

8. Plaintiff Jamar Francis resided at all times relevant in Brooklyn, King's County, City and State of New York.

9. Defendant Joseph Solomito, Shield No. 14389 ("Solomito") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Solomito was, at the time relevant herein, a Police Officer under Shield # 14389 of the 81st Precinct. Defendant Solomito is sued in his individual capacity.

10. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers,

detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John and Jane Doe 1 through 10.

11. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

12. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

13. On May 8, 2015, at approximately 9:00 PM, Mr. Jamar Francis was in the courtyard of 701 Gates Avenue in Brooklyn, King's County, New York.

14. Mr. Jamar Francis was lawfully in the courtyard of 701 Gates Avenue for a family gathering.

15. Mr. Jamar Francis was not committing any crime or violating any law or local ordinance.

16. After about 20 minutes of hanging out in the Courtyard of 701 Gates Avenue, Mr. Jamar Francis' brother, Mr. Freddie Francis arrived at the Courtyard.

17. Mr. Freddie Francis was not committing any crime or violating any law or local ordinance.

18. Mr. Jamar Francis and Mr. Freddie spoke for about two minutes when the Defendants, including Solomito, unlawfully stopped Plaintiffs in the Courtyard.

19. The Defendants did not observe Plaintiffs commit any crime or infraction.

20. One of the Defendants drew his gun and told Plaintiffs to freeze and put their hands up.

21. Plaintiffs complied with the Defendants orders.

22. The Defendants, including Solomito, then searched Plaintiffs without their permission or authority.

23. No contraband or anything of illegality was found on Plaintiffs.

24. Defendants, including Solomito, then requested Identification from Plaintiffs.

25. Plaintiffs complied and handed their Identification to Defendants.

26. Defendants, including Solomito, unlawfully handcuffed Plaintiffs.

27. Defendants did not have probable cause or reasonable suspicion to detain or arrest Plaintiffs.

28. Plaintiffs did not resist arrest.

29. Defendants, including Solomito, placed Plaintiffs under arrest and transported them to the 81st Precinct.

30. At the 81st Precinct, Plaintiffs were put in a holding cell for approximately 5 hours.

31. After approximately 5 hours, Plaintiffs were released with Desk Appearance Tickets for Loitering and Possession of Open Container.

32. Plaintiffs were not loitering, and they did not possess an open container.

33. Defendants, including Solomito, conveyed false information to prosecutors in order to have Plaintiffs prosecuted for Loitering and Possession of Open Container.

34. Plaintiffs were unlawfully held in police custody for approximately 6 hours.

35. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene in the actions of his fellow officers when

he observed them arresting Plaintiffs without probable cause.

36. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiffs and violate their civil rights.

37. As a direct and proximate result of the acts of Defendants, Plaintiffs suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, and loss of liberty.

FIRST CAUSE OF ACTION

Unlawful Stop and Search
42 U.S.C. § 1983 Against Individual Defendants

38. The above paragraphs are here incorporated by reference as though fully set forth.

39. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiffs without reasonable suspicion.

40. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein before alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

41. The above paragraphs are here incorporated by reference as though fully set forth.

42. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

43. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

44. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. By their conduct, as described herein, Defendants are liable to Plaintiffs for the violation of their constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

47. Defendants, acting with malice, initiated a prosecution against Plaintiffs and caused them to be prosecuted.

48. The prosecution by Defendants of Plaintiffs constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.

49. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. The individual Defendants created false evidence against Plaintiff, to wit, sworn documents and testimony alleging that Plaintiffs committed a crime.

52. The individual Defendants forwarded false evidence to prosecutors.

53. In creating false evidence against Plaintiffs, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiff's right to a fair trial under the Due

Process Clause of the Fourth and Fourteenth Amendments of the United States Constitution.

54. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

55. The above paragraphs are here incorporated by reference as though fully set forth.

56. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

57. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

58. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiffs in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiffs punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiffs compensatory and special damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: August 24, 2015
Brooklyn New York

Respectfully submitted,

/s/ Joseph Indusi
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